

# STATE OF NEW YORK

10132--A

## IN ASSEMBLY

February 3, 2026

Introduced by M. of A. OTIS -- read once and referred to the Committee on Science and Technology -- reported and referred to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to enacting the "connected consumer product end of life disclosure act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as  
2 the "connected consumer product end of life disclosure act".

3 § 2. The general business law is amended by adding a new section 399-  
4 mm to read as follows:

5 § 399-mm. Connected consumer product end of life disclosure. 1. Defi-  
6 nitions. As used in this section, the following terms shall have the  
7 following meanings:

8 (a) "Connected consumer product" means any product that is intended  
9 for consumer use and depends for its functioning, in whole or in part,  
10 on connection to the internet. The term includes the product, the mobile  
11 application, and necessary cloud infrastructure.

12 (b) "End of life" means the point at which the manufacturer ceases  
13 providing technical support, security updates, or bug fixes for the  
14 software, hardware, or firmware necessary for the connected consumer  
15 product to securely function, even if the product is still in use.

16 (c) "Firmware" means low-level software that is embedded into hardware  
17 devices, where such software provides the essential instructions needed  
18 for hardware to operate properly, acting as a middle layer between the  
19 hardware and higher-level software such as device operating systems or  
20 applications.

21 (d) "Minimum guaranteed support time frame" means the minimum amount  
22 of time for which a company has publicly committed to providing techni-  
23 cal support, security updates, or bug fixes for the software, hardware,  
24 or firmware, expressed as continuing until a specific date.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

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1 (e) "Product web page" means a web page specific to the particular  
2 connected consumer product that contains information about such product  
3 and its features.

4 (f) "Security updates" means updates released to address vulnerabili-  
5 ties in the software, hardware, or firmware used by a connected consumer  
6 product.

7 (g) "Support" means service to ensure that a connected consumer prod-  
8 uct continues to fully function and to provide information and guidance  
9 to consumers regarding proper use of the product.

10 (h) "Update" means a security update, or an update released for a  
11 connected consumer product to address effectively a flaw in the soft-  
12 ware, hardware, or firmware running on the product that interferes with  
13 the full functioning of the product.

14 (i) "Vulnerability" means a flaw in the software, hardware, or firm-  
15 ware running on a connected consumer product that lessens the security  
16 and integrity of the software, hardware, or firmware needed to operate  
17 such product.

18 2. Requirements. The following requirements shall apply to any  
19 connected consumer product manufactured or sold after January first, two  
20 thousand twenty-seven:

21 (a) The manufacturer shall clearly and conspicuously disclose a mini-  
22 imum guaranteed support time frame on the product webpage.

23 (b) The seller shall clearly and conspicuously disclose at the point  
24 of sale instructions on how to find the information outlined in para-  
25 graph (a) of this subdivision.

26 (c) The minimum guaranteed support time frame shall not be inconsist-  
27 ent with reasonable consumer expectations about how long a connected  
28 consumer product's features that depend upon internet connectivity will  
29 continue to function safely and effectively.

30 (d) The minimum guaranteed support time frame for a connected consumer  
31 product shall not be reduced after it is disclosed pursuant to this  
32 subdivision. A manufacturer may extend the minimum guaranteed support  
33 time frame at any time by making a new disclosure pursuant to this  
34 subdivision.

35 (e) The disclosures described in paragraph (a) of this subdivision  
36 shall also include a detailed account of the features and functionality  
37 that will be lost when the connected consumer product reaches its end of  
38 life.

39 (f) The manufacturer shall provide advance notice of the decision to  
40 cease providing technical support, security updates, or bug fixes for  
41 the software, hardware, or firmware on the product webpage. Such notice  
42 shall:

43 (i) be posted six months before the product reaches end of life; and

44 (ii) disclose the date on which the product reaches end of life.

45 (g) The disclosure outlined in paragraph (a) of this subdivision and  
46 the notification outlined in paragraph (f) of this subdivision shall  
47 include clear information about actions the user can take if they want  
48 to continue using the connected consumer product in a secure and effec-  
49 tive manner, disconnecting such product from the internet and shall  
50 provide a list of features lost, and vulnerabilities and security risks  
51 that are likely to result from the end of life.

52 (h) A business that owns or controls a connected consumer product and  
53 leases or otherwise provides such connected consumer product to their  
54 customers shall:

1 (i) ensure that updates associated with the minimum guaranteed support  
2 time frame associated with such connected consumer product are promptly  
3 received by the customer; and

4 (ii) when the product has reached end of life:

5 (A) promptly notify customers; and

6 (B) replace the product, at no additional cost to customers, with a  
7 comparable product capable of receiving necessary updates and support,  
8 when such comparable product is reasonably available to the business,  
9 and notify customers of such replacement product.

10 3. Enforcement. Any entity that violates this section shall be subject  
11 to a civil penalty of not more than one hundred dollars for the first  
12 violation, not more than two hundred fifty dollars for the second  
13 violation, and not more than five hundred dollars for each violation  
14 thereafter. The provisions of this section may be enforced concurrently  
15 by the director of a municipal consumer affairs office, or by the town  
16 attorney, city corporation counsel, or other lawful designee of a  
17 municipality or local government, and all moneys collected thereunder  
18 shall be retained by such municipality or local government.

19 § 3. This act shall take effect immediately.